

nation. See a president hereof before the coronation of king R. 2. John duke of Lancaster then steward of England, (who in claymes before him was stiled *tres honorable seignior le roy de Castile et Leon, et seneschal D'anglitterre*) and held his court in *Alba Aula apud Westm. die Jovis proxime ante coronationem. Quæ quidem coronatio habita et solemnizata fuit die Jovis sequente, viz. 16 Julii anno 1 R. 2.*

The first that was created *hac vice* for the solemnization of the coronation of H. 4. was Thomas his second son. ⁱ And upon the arraignment of John Holland earl of Huntingdon, the first that was created steward of England *hac vice*, was Edward earl of Devon.

Rot. parl. 37 H. 6. nu. 49. Thomas Courtney earl of Devon was arraigned of high treason before Humphrey duke of Glouc. *hac vice* steward of England, and acquitted. And so was ^k the lord Dacres of the north arraigned of high treason before Thomas duke of Norff. *hac vice* steward of England and acquitted by 20 peers.

When he sitteth by force of his office he sitteth under a cloth of estate, and such as direct their speech unto him, say, Please your grace my lord high steward of England. The stile of the said John of Gaunt was, *Johannes filius regis Angliæ, rex Legionis et Castellæ, dux Aquitaniæ et Lancastriæ, comes Derbiæ, Lincolnæ, et Leicestriæ, seneschallus Angliæ.* And in respect his power before it was limited was so transcendent, I finde no mention made of this great officer in any of our ancient authors, the Mirror, Bracton, Britton, or Fleta. It seemeth they liked not to treat of his authority. Neither do I finde him in any act of parliament, nor in any book case before 1 H. 4. and very few since: which hath caused me to be the longer in another place to set forth his authority and due proceeding upon the arraignment of a peer of the parliament, by judicial record and resolution of the judges, agreeable with constant experience.

For the etymologie and signification of (*seneschallus*) see the first part of the Institutes: and though it hath severall derivations, yet as being applied to England, it is properly derived from *sen*, that is justice, and *schale*, that is, governour or officer, that is, *præfectus seu officarius justitiæ.* And this agreeth well with his authority and duty to proceed (as hath been said) *secundum leges et consuetudines Angliæ.*

It is to be observed, that as the peers of the realm that be triors or peers, are not sworne, so the lord steward being judge, &c. is not sworn: yet ought he according to his letters patents to proceed *secundum legem et consuetudinem Angliæ.*

ⁱ V. 1 H. 4. fo. 1. Therefore Tho. Walsingham, p. 363. and others who affirme that he was beheaded at Pleshy in Essex by the commons, do erre.

^k Term. Pasch. 26 H. 8. of justice Spilman's report.

See the third part of the Institutes, cap. Treason.

[60]
First part of the Institutes, sect. 78.

C A P. V.

The Honourable Court of Star-Chamber, *coram Rege et Concilio suo*: Of ancient Time, *coram Rege in Camera*, &c.

That it is an eminent court proved by records and acts of parliament.

^a 22 Lib. ass. pl. 52.

^b Rot. pat. 1 part. m. 12. *Fraud and falsehood.*

^c Rot. pat. 1 part. m. 13. *Falshood in an officer and raising of a record.*

^d Rot. clauf. 41 E. 3. m. 8. in dorf. *Vid. rot. pat. 2 R. 2. 1 part. m. camera stellata. for raising.*

12 R. 2. cap. 11. *dev. le council.*

^e Rot. clauf. 41 E. 3. Cambd. Brit. 130.

^f Rot. clauf. 16 R. 2. in dorf. m. 11.

^g Pat. 6 H. 5. & consimile anno 7 H. 5. pro manerio de Fish-erwicke in Com. Norff.

IN ^a the 28 year of the reign of E. 3. it appeareth, that the returns *coram nobis*, are in three manners, *coram nobis in camera* (which, it is said, was afterwards called *camera stellata*.) 2. *Coram nobis ubicunque fuerimus in Anglia*, which is the kings bench; and *coram nobis in cancellaria*. And of all the high and honourable courts of justice, this ought to be kept within his proper bounds and jurisdiction.

^b In 38 E. 3. *coram rege et concilio*, John Redland complained of Robert Spinke for delivery of prisoners upon false suggestion made to the king: upon hearing the cause, the defendant was acquitted, the plaintife imprisoned.

^c In 39 E. 3. Ralph Brantingham one of the chamberlains of the exchequer complained before the king and his councill of Richard Cesterfield clerk deputy of the kings treasurer, in the receipt for divers allowances, payments, &c. unduly made, and for raising of records, &c. Upon the hearing of the cause by the whole councill, the defendant was acquitted, and the plaintife removed from his office, and committed to prison.

^d The abbot de Bruera, and Ragge his monk sentenced *coram rege et concilio*, for raising of letters patents, and inserting other words: and the letters patents by sentence cancelled.

^e In anno 41 E. 3. in a bill of complaint exhibited to the king by Elizabeth the widow of Nicholas Awdeley plaintife, against Jane Awdeley defendant, who appeared before the kings councill, viz. the chancellor, treasurer, justices, and others assembled *en la chambre des estoils pres de la receits*.

^f A suit depending before the king and councill between the abbot of Saint Austen of Canterbury and others concerning wrecks, &c. The abbot brought his action at the common law against the parties, who being thereupon arrested and imprisoned, the sheriffe was commanded by the kings writ to deliver them, and to forbear to serve any other proces against them; and the reason there yielded is notable, *Quia non est juri consonum, aut honestum, quod aliquis de hiis quæ coram nobis et concilio nostro in discussione pendunt, alibi inde interim placitari debeat, aut apparere.*

^g A suit depending before the king and his councill, between W. G. of the one part, and H. S. of the other part: a sequestration is ordered for the preservation of the things in question.

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